

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

Index No.:  
Purchased:

-----X  
LISBETH DIAZ AND BRUCE COMAS,

Plaintiff designates  
Bronx County as the place of trial

Plaintiffs,

The basis of the venue is where the  
tort arose

-against-

CITY OF NEW YORK, individually and in their official  
capacities as New York City police officers, JOSEPH  
SICARI, PAWEL LACHOWSKI, and JOHN or JANE  
DOE 1-10,

**SUMMONS**

Defendant.  
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**TO THE ABOVE-NAMED DEFENDANT:**

**YOU ARE HEREBY SUMMONED**, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York  
December 11, 2019

  
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**SIM & DEPAOLA, LLP**

**BY: *Peter Sim, Esq.***

*Attorneys for Plaintiff(s)*

42-40 Bell Boulevard Suite 201

Bayside, New York 11361

(718) 281-0400

TO: CORPORATION COUNSEL  
OF THE CITY OF NEW YORK  
100 Church Street  
New York, New York 10007

Police Officer JOSEPH SICARI  
Shield No.18517, Tax ID 959230  
Narcotics Borough of Bronx  
257 Alexander Avenue  
Bronx, NY 10454

Lieutenant PAWEL LACHOWSKI  
Tax ID 940350  
At 48<sup>th</sup> Precinct  
450 Cross Bronx Expressway  
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
LISBETH DIAZ AND BRUCE COMAS,

Plaintiffs,

Index No.:

-against-

**VERIFIED COMPLAINT**

CITY OF NEW YORK, individually and in their official  
capacities as New York City police officers, JOSEPH SICARI,  
PAWEL LACHOWSKI, and JOHN or JANE DOE 1-10.  
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Plaintiffs, LISBETH DIAZ AND BRUCE COMAS, by their attorneys, Sim & DePaola,  
LLP, for their complaint against the above Defendants, alleges as follows:

1. The claim arises from a July 1, 2017 incident in which defendants, acting under color of state law, unlawfully arrested and detained LISBETH DIAZ (“Ms. Diaz”), and BRUCE COMAS (“Mr. Comas”). Plaintiffs were subsequently charged with Criminal Possession of a Weapon in the 2<sup>nd</sup> Degree, Criminal Possession of a Firearm, Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Possession of a Weapon in the 4th Degree and Unlawful Possession of a Firearm. As a result, Ms. Diaz and Mr. Comas were deprived of their liberty, and caused to sustain physical and emotional injuries. Mr. Comas was wrongfully incarcerated for approximately seven (7) days, until he was released, on or about July 7, 2017, after being arraigned, while Ms. Diaz was wrongfully incarcerated for approximately four (4) days, until he was released, on or about July 4, 2017. All Plaintiffs were maliciously prosecuted until Ms. Diaz’s charges were dismissed on March 20, 2019, and Mr. Comas’ charges were dismissed on September 27, 2018, respectively.

2. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

**PARTIES**

3. Plaintiff LISBETH DIAZ ("Ms. Diaz") resides at 6080 Randalls Avenue, Apt. 5C, Bronx, NY 10451.
4. Plaintiff BRUCE COMAS ("Mr. Comas") resides at 480 E. 185<sup>th</sup> Street, Bronx, NY 10458.
5. The Defendant City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York.
6. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD") is responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
7. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
8. Defendant JOSEPH SICARI ("SICARI") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Sicari was, at all times relevant herein, a police officer, Shield Number 3802 and Tax Id. Number 959230, of Narcotics Borough

of Bronx, 257 Alexander Ave, The Bronx, NY 10454. Defendant Sicari is being sued in his individual and official capacities.

9. Defendant PAWEL LACHOWSKI (“Lachowski”) was, at all times here relevant, a Sergeant employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Lachowski was, at all times relevant herein, a Sergeant, Tax Id. Number 940350, of the 48<sup>th</sup> Precinct, 450 Cross Bronx Expressway, The Bronx, NY 10457. Defendant Lachowski is being sued in his individual and official capacities.
10. At all times relevant Defendants, including Sicari, Lachowski and John or Jane Doe 1 through 10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registration numbers of Defendants John and Jane Doe 1 through 10 but is within knowledge of the defendants.
11. At all times relevant herein, Defendants, including Sicari, Lachowski and John or Jane Doe 1 through 10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John and Jane Doe 1 through 10 are being sued in their individual and official capacities.
12. At all times here mentioned Defendants, including Sicari and Lachowski were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
13. Plaintiffs have served notices of claim, which have been deemed timely served *nunc pro tunc* by this Court.

14. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
15. Plaintiffs have complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.
16. This action and associated claims have been timely commenced within all applicable statutes of limitations.

**FACTUAL CHARGES**

17. On July 1, 2017, at approximately 12:00 A.M., Ms. Diaz at the time of the arrest was in her home located on 769 Melrose Avenue Bronx, New York. Ms. Diaz was using the bathroom attending to her menstrual duties.
18. At the time of the arrest Ms. Diaz was attending to her menstrual cycle in the comfortable setting of her own home, when Defendants forced entrance in the bathroom and placed her in handcuffs.
19. Ms. Diaz was wearing short pajama clothing and barefooted when she was taken out of her home and to the defendants NYPD vehicle.
20. Defendants including Sicari, and Lachowski entered the venue without a search warrant, searched and seized the occupants of the home.
21. Defendants entered the home with the intentions of finding any weapon or possession of a controlled substance on Ms. Diaz but however, failed to find anything illegal on her person or her reach.
22. Ms. Diaz never committed any crimes or violations of the law.

23. The fact that the Plaintiff was using the bathroom in her home, does not rise to the level of probable cause or reasonable suspicious to stop, detain or arrest Plaintiff.
24. Ms. Diaz was arrested, handcuffed and searched in the apartment, Defendants walked Ms. Diaz outside of the building barefooted where she was exposed to dangerous and possibly infected objects on the ground in a public area. Ms. Diaz health was placed at risk due to negligence of the defendants.
25. Ms. Diaz was taken to the 40th precinct where she was processed and her DNA sample was collected.
26. Ms. Diaz suffered anxiety/panic attacks while being held in the cell. Ms. Diaz was rushed to medical attention where she received supervision and IV.
27. Mr. Diaz was placed in a cell at the 40th precinct for approximately four (4) days, before she was taken to the Central Booking. Ms. Diaz remained in a cell at Central Booking until approximately July 4, 2017, when she was released after all charges against her were favorably dismissed on September 27, 2018.
28. On or about July 1, 2017 at approximately 12:00 A.M., Mr. Comas was in his mother's home, located at 769 Melrose Avenue, Bronx, New York when Defendants, including Lachowski, entered into the apartment and had gun drawn on him.
29. At said date, time and location, Mr. Comas was mere visitor at said location with the consent of the owner of said apartment.
30. At all times in said apartment, Mr. Comas was not aware of any contraband or firearm alleged to be in the apartment as there was no contraband or firearm in plain view in the apartment.

31. On said date, time, and location, Defendants, including Sicari, and Lachowski, entered said apartment pursuant to a warrant obtained via the use of fraud, perjury, the suppression of evidence, and/or the commission of acts in gross deviation from proper police procedure, namely the false affidavit and/or testimony submitted by Defendants, including Sicari, and Lachowski and the false information offered by Defendants' confidential informant.
32. Defendants, including Sicari, and Lachowski, committed multiple assault and batteries to, Mr. Comas' person, including but not limited to, being handcuffed too tightly, forcibly grabbed, pushed, and shoved.
33. Plaintiff Mr. Comas was placed in a cell at the 41<sup>st</sup> precinct for approximately seven (7) days, before he was taken to the Central Booking. Mr. Comas remained in a cell at Central Booking until approximately July 7<sup>th</sup>, 2017, when he was released after all charges against her were favorably dismissed on March 20, 2019 before the Hon. B. Warhit.
34. Defendants, including Sicari, and Lachowski, intentionally provided said false information that would be likely to influence a jury's decision to prosecutors employed by the District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Hernandez.
35. At all relevant times, Defendants, including Sicari, and Lachowski, they did not provide full and truthful facts to the District Attorney's Office or the Presiding Judge to justify the issuing of a valid search warrant.
36. Defendants, including Sicari, and Lachowski, illegally searched and seized Ms. Diaz and Mr. Comas, without probable cause to do so, as they had committed no crimes or violations of the law.



37. Defendants, including Sicari, and Lachowski, illegally searched said apartment, deliberately causing property damage to said location with no legitimate reason for doing so.
38. Defendants, including Sicari, and Lachowski, did not have arrest warrants for Ms. Diaz and Mr. Comas.
39. Defendants, including Sicari, and Lachowski, were fully aware, at all times, that they lacked probable cause to arrest Ms. Diaz and Mr. Comas, because defendants never observed or possessed a reasonable belief that Plaintiffs committed any crimes or violations of the, including, but not limited to, with Criminal Possession of a Weapon in the 2<sup>nd</sup> Degree, Criminal Possession of a Firearm, Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Possession of a Weapon in the 4th Degree and Unlawful Possession of a Firearm.
40. Plaintiffs, Ms. Diaz and Mr. Comas, were not in actual, constructive or statutory possession of any contraband or firearms, including any alleged firearms allegedly recovered from said apartments.
41. Defendants, including Sicari, and Lachowski, did not possess probable cause or other justification for the arrest or seizure of Ms. Diaz and Mr. Comas' person.
42. Defendants, including Sicari and Lachowski, never possessed probable cause to believe a prosecution would succeed against Plaintiffs, or that Plaintiffs were guilty of any crime, as defendants were fully aware that any evidence against Plaintiffs were either fraudulent or fabricated, including the observation provided by defendants Sicari and Lachowski.
43. Plaintiffs, Ms. Diaz and Mr. Comas, did not violate any law or local ordinance, including, but not limited to, with Criminal Possession of a Weapon in the 2<sup>nd</sup> Degree, Criminal

Possession of a Firearm, Criminal Possession of a Controlled Substance in the Seventh Degree, Criminal Possession of a Weapon in the 4th Degree and Unlawful Possession of a Firearm.

44. While Plaintiff was unlawfully detained, Defendants, including Sicari and Lachowski, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiffs prosecuted.
45. At all times relevant hereto, Defendants, including Sicari and Lachowski, John or Jane Does 1-10, were involved in the decision to arrest Plaintiffs without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause or using excessive force to effectuate his arrest.
46. At all times relevant hereto, Defendants, including Sicari and Lachowski and John or Jane Does 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' wrongful arrest and subsequent malicious criminal prosecution.
47. Plaintiffs assert that the Defendants, including Sicari and Lachowski and John or Jane Does 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, DHS and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD, DHS and City of New York or, at the very least, conclusive evidence that the City, DHS and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become

deliberately indifferent to the civil rights of those who may come into contact their police officers.

48. The individually named defendants herein, as well as other officers serving in the employ of the NYPD, DHS and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, DHS the City of New York and their respective policymakers and supervisors.
49. Plaintiffs assert that the Defendants, including Sicari and Lachowski, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official policy or custom within the NYPD and City of New York or, at the very least, conclusive evidence that the City and the NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact with their police officers.
50. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly,

with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

51. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to lie about subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.
52. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and

- detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.
53. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana. It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.
54. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.
55. Other articles include: (i) "Testifying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May

14, 2015; (v) “In Brooklyn Gun Cases, Suspicion Turns to the Police,” by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) “Detective is Found Guilty of Planting Drugs,” by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) “The Drugs? They Came From the Police,” by Jim Dwyer, *The New York Times*, October 13, 2011.

56. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.
57. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in Plaintiffs’ arrest without probable cause.
58. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

59. Defendants' actions, pursuant to Plaintiffs' underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs' civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD and City of New York.
60. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of defendants, the NYPD and City of New York.
61. Upon information and belief, the personnel files, records and disciplinary histories of the officer defendants will reveal a history of Constitutional violations indicative of defendant City's knowledge that the individual officer defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named defendants committing similar violations in the future was extremely high.
62. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City and the NYPD were fully aware of defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement

officers, or for employment in general, and that the NYPD and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Sicari and Lachowski.

63. Upon information and belief, the individually named Defendants have combined to be named as Defendants in numerous lawsuits that have accused them of committing violations similar or identical to those alleged herein.
64. Upon information and belief, the NYPD and City of New York and have failed, or outright refused, to correct the individually named defendants' predilections to engage in unconstitutional behavior or attempt to prevent the recurrence of such misconduct
65. The aforementioned acts of defendants, including the City, Defendants, including Sicari and Lachowski, directly or proximately resulted in the deprivation or violation of Ms. Diaz's and Mr. Comas' civil rights, as guaranteed and protected by the Fourth, Fifth, Sixth and Fourteenth Amendments to the United States Constitution, as well as the laws and Constitution of the State of New York.
66. As a direct or proximate result of said acts, Ms. Diaz and Mr. Comas were caused to suffer the loss of their liberty, irreparable reputational harm, loss of earnings and potential earnings, physical injury, as well as severe and permanent emotional distress, including fear, embarrassment, humiliation, traumatization, frustration, extreme inconvenience, and anxiety.
67. Plaintiffs, Ms. Diaz and Mr. Comas, were placed in a van and eventually taken to a local NYPD Precinct, where they were each criminally processed.



68. Plaintiffs, Ms. Diaz and Mr. Comas, were denied their liberty and unlawfully kept in custody until they were released following their releases on their own recognizances.
69. The prosecutions of Plaintiffs ended when all the charges against each of them were dismissed and sealed.

**FIRST CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
New York State Law

70. The above paragraphs are here incorporated by reference as though fully set forth.
71. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.
72. Plaintiffs were conscious of their confinement.
73. Plaintiffs did not consent to their confinement.
74. Plaintiffs' arrests and false imprisonment were not otherwise privileged.
75. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
76. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
77. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SECOND CAUSE OF ACTION**

False Arrest and False Imprisonment Under  
42 U.S.C. § 1983 Against Individual Defendants

78. The above paragraphs are here incorporated by reference as though fully set forth.

79. The Defendants, acting under color of state law, violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.
80. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs was carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.
81. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.
82. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
83. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRD CAUSE OF ACTION**

Assault and Battery Under  
New York State Law

84. The above paragraphs are here incorporated by reference as though fully set forth.
85. Defendants made plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.
86. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching, thus battering them without their consent.
87. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
88. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

89. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTH CAUSE OF ACTION**

Excessive Force Under  
42 U.S.C. § 1983 Against Individual Defendants

90. The above paragraphs are here incorporated by reference as though fully set forth.
91. The Defendants, acting under color of state law, violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.
92. Defendants engaged in and subjected Plaintiffs' to immediate harmful and/or offensive touching and battered him without their consent.
93. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
94. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTH CAUSE OF ACTION**

Malicious Prosecution Under  
New York State Law

95. The above paragraphs are here incorporated by reference as though fully set forth.
96. Defendants initiated the prosecutions against Plaintiffs.
97. Defendants lacked probable cause to believe Plaintiffs were guilty or that prosecutions would succeed against them.
98. Defendants acted with malice.

99. The prosecutions were terminated in Plaintiffs' favor when the criminal charges against each of them were dismissed and sealed.
100. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
101. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.
102. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION**

Malicious Prosecution Under  
42 U.S.C. § 1983 Against Individual Defendants

103. The above paragraphs are here incorporated by reference as though fully set forth.
104. Defendants, acting under color of state law, initiated the prosecution against Plaintiffs.
105. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.
106. Defendants acted with malice.
107. The criminal charges against Plaintiffs were dismissed and sealed as to each, representing terminations of the prosecutions in favor of the Plaintiffs.
108. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.
109. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
110. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
New York State Law

- 111. The above paragraphs are here incorporated by reference as though fully set forth.
- 112. Defendants arrested, detained and caused criminal prosecutions to be initiated against Plaintiffs to compel the compliance or forbearance of some act.
- 113. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
- 114. Defendants intended to inflict substantial harm upon Plaintiffs.
- 115. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
- 116. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
- 117. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
- 118. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**EIGHTH CAUSE OF ACTION**

Malicious Abuse of Process Under  
42 U.S.C. § 1983 Against Individual Defendants

- 119. The above paragraphs are here incorporated by reference as though fully set forth.
- 120. Defendants, acting under color of state law, arrested, detained and caused a criminal prosecution to be initiated against Plaintiffs to compel the compliance or forbearance of some act.

121. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.
122. Defendants intended to inflict substantial harm upon Plaintiffs.
123. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.
124. Defendants' actions deprived Plaintiffs' of their right to free from illegal searches and seizures, as well as their right not to be deprived of their liberty without due process of law.
125. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
126. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**NINTH CAUSE OF ACTION**

Deprivation of Rights and Denial of Equal Protection of the Laws under  
New York State law

127. Plaintiffs, as being of Hispanic ethnicity, descent and national origin, are members of a racial minority and protected classes.
128. Defendants discriminated against Plaintiffs on the basis of their race, national origin, ethnicity, or sex.
129. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.
130. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.

131. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.
132. Defendants, motivated by discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
133. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
134. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
135. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TENTH CAUSE OF ACTION**

Deprivation of Rights and Denial of Equal Protection of the Laws under  
42 U.S.C. §§ 1983 and 1981 Against Individual Defendants

137. Plaintiffs, as being from Hispanic descent, ethnicity and national origin, are members of a racial minority and a protected class.
138. Defendants discriminated against Plaintiffs on the basis of their race, national origin, ethnicity, or sex.
139. Defendants also selectively treated Plaintiffs as compared to others similarly situated to Plaintiffs.
140. Defendants' selective treatment of Plaintiffs was based on impermissible considerations, such as race, religion, intent to inhibit or punish Plaintiffs' exercising of their Constitutional rights, or malicious or bad faith intent to injure Plaintiffs.
141. Defendants applied facially neutral laws against Plaintiffs in a discriminatory manner.

142. Defendants, motivated by a discriminatory animus, applied facially neutral penal statutes with adverse effects against Plaintiffs.
143. Defendants did not possess a rational basis, excuse or justification for applying any laws or statutes against Plaintiffs.
144. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
145. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**ELEVENTH CAUSE OF ACTION**

Conspiracy to Interfere with Civil Rights and Failure to Prevent the Conspiracy under  
42 U.S.C. §§ 1985 and 1986 Against Individual Defendants

146. Defendants engaged in a conspiracy against Plaintiffs to deprive Plaintiffs of the equal protection of the laws, or of the privileges and immunities under the laws.
147. Defendants committed overt acts in furtherance of their conspiracy against Plaintiffs.
148. Plaintiffs sustained injuries to their persons and were deprived of rights or privileges of citizens of the United States.
149. Defendants' conspiracy was motivated by some racial, or otherwise class-based, invidious discriminatory animus.
150. The Defendants that did not engage or participate in the conspiracy to interfere with Plaintiffs' civil rights, had knowledge that acts in furtherance of the conspiracy were about to be committed or being committed, possessed the power to prevent or aid, and neglected to do so.
151. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.



152. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**TWELFTH CAUSE OF ACTION**

Failure to Intervene Under  
New York State Law

153. The above paragraphs are here incorporated by reference as though fully set forth.
154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
155. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
156. As a direct and proximate result of this unlawful conduct, Plaintiffs' sustained the damages hereinbefore alleged.
157. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**THIRTEENTH CAUSE OF ACTION**

Failure to Intervene Under  
42 U.S.C. § 1983 Against Individual Defendants

158. The above paragraphs are here incorporated by reference as though fully set forth.
159. Those Defendants, acting under color of state law, that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

160. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
161. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
162. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
163. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FOURTEENTH CAUSE OF ACTION**

Negligent Hiring, Retention and Supervision Under  
New York State Law

164. The above paragraphs are here incorporated by reference as though fully set forth.
165. Defendant City owed a duty of care to Plaintiffs to adequately hire, retain and supervise its employee defendants.
166. Defendant City breached that duty of care.
167. Defendant City placed defendants in a position where they could inflict foreseeable harm.
168. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.
169. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiffs.
170. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.
171. By reason of the above, the amount of damages sought on this cause of action exceeds the

jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**FIFTEENTH CAUSE OF ACTION**

Municipal “*Monell*” Liability Under  
42 U.S.C. § 1983 Against Defendant City

172. The above paragraphs are here incorporated by reference as though fully set forth.
173. Defendant City, under color of state law, maintained a policy, custom or practice that caused Plaintiffs to be deprived of their Constitutional right to free from illegal searches and seizures.
174. Defendant City’s illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.
175. Defendant City and its policymakers failed to provide adequate training or supervision to subordinates to such an extent that it is tantamount to their deliberate indifference towards the rights of those who come into contact with Defendant City’s employees.
176. Defendant City’s employees engaged in such egregious and flagrant violations of Plaintiffs’ Constitutional rights that the need for enhanced supervision and training is obvious and therefore tantamount to a display of deliberate indifference by Defendant City and its policymakers towards the rights of individuals who come into contact with defendant City’s employees.
177. Defendant City’s conduct violated Plaintiffs’ rights under the Fourth and Fourteenth Amendments to the United States Constitution.
178. As a direct and proximate result of this unlawful conduct, Plaintiffs’ sustained the damages hereinbefore alleged.
179. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

**WHEREFORE**, Plaintiffs' respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- n) On the Fourteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- o) On the Fifteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- p) Awarding Plaintiffs punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- q) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988; together with the costs and disbursements of this action

Dated: Bayside, New York  
December 11, 2019



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SIM & DEPAOLA, LLP  
By: Peter Sim, Esq.  
Attorneys for Plaintiffs  
4240 Bell Blvd, Suite 201  
Bayside, NY 11361  
T: (718) 281-0400  
F: (718) 631-2700

## ATTORNEY VERIFICATION

I, **Peter Sim**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiffs, is because Plaintiffs reside outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York  
December 11, 2019.

  
\_\_\_\_\_  
PETER SIM, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

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LISBETH DIAZ AND BRUCE COMAS,

Plaintiffs,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, JOSEPH SICARI, PAWEL LACHOWSKI, and JOHN or JANE DOE 1-10,

Defendants.

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**SUMMONS AND VERIFIED COMPLAINT**

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**SIM & DEPAOLA, LLP**  
BY: PETER SIM  
*Attorneys for Plaintiff(s)*  
42-40 Bell Boulevard, Suite 201  
Bayside, NY 11361  
Tel. (718) 281-0400

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To: CORPORATION COUNSEL OF NEW YORK

*Attorney(s) for Defendants*

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Service of a copy of the within is hereby admitted.  
Dated

Attorney(s) for